

		“Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule.” (CRC, Rule 8.817, subd. (a)(1).) In addition, “[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . .” (CRC, Rule 8.817, subd. (a)(2).) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (CRC, Rule 3.1300, subd. (c).) Moving attorneys’ prior motion was denied due to lack of proof of service. Again, moving attorneys have failed to attach a valid proof of service, attaching only a Certified Mail Receipt. However, there is no proof of service to indicate what was served on Plaintiff on this date. Accordingly, the motion is again DENIED without prejudice for failure to file a valid proof of service. THIS RULING IS FINAL Moving Plaintiff’s counsel to give notice.
3.	Gietter vs. Corniche Sur Mer Homeowners Association 25-01523200	Motion for Attorney Fees Plaintiffs Michael Gietter and Patricia Gietter’s motion for attorney fees is DENIED. (Code Civ. Proc., § 425.16, subd. (c)(1) [“If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5”].) First, moving plaintiffs have not complied with the “safe harbor” provisions of Code Civ. Proc., § 128.5, subd. (f)(1)(B), nor provided any evidence (as opposed to argument) that such compliance was impractical. (<i>Zarate v. McDaniel</i> (2023) 97 Cal.App.5th 484, 490-491.) Second, moving plaintiffs do not argue that defendant Corniche Sur Mer Homeowners Association’s prior special motion to strike was solely intended to cause unnecessary delay, and have not satisfactorily shown that said motion was frivolous. (Code Civ. Proc., § 425.16, subd. (c)(1) [requirements for attorney fees to prevailing plaintiffs on anti-SLAPP motion]; <i>Gerbosi v. Gaims, Weil, West & Epstein, LLP</i> (2011) 193 Cal.App.4th 435, 450 [“Frivolous in this context means that any reasonable attorney would agree the motion was totally

		devoid of merit”].) Defendant’s anti-SLAPP motion relied on ample authorities that actions by a homeowners’ association can in fact constitute protected activity; that the court disagreed and found to the contrary, does not render the anti-SLAPP motion frivolous. Defendant shall give notice.
4.	Vangelos vs. Mehta 25-01520113	Motion for Sanctions OFF CALENDAR
5.	Garcia vs. La Habra City School District 25- 01535218	Motion to Quash Subpoena Plaintiff Agustin Garcia’s motion to quash the records subpoena issued to nonparty deponent Providence St. Jude Medical Center is GRANTED. (See Code Civ. Proc., § 1987.1.) This motion concerns the records subpoena issued by defendant La Habra City School District (defendant or District) to nonparty deponent Providence St. Jude Medical Center on 5/14/26, seeking any and all records pertaining to plaintiff without any limitation as to body part, medical condition, or subject matter, from 1/1/15 to the present. (Allton Decl. at Ex. A [subject subpoena].) Plaintiff’s right to privacy in his medical and financial records is well established in law. (<i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 841 (<i>Vinson</i>) [medical records]; <i>Davis v. Superior Court</i> (1992) 7 Cal.App.4th 1008, 1014 (<i>Davis</i>) [medical records]; <i>Cobb v. Superior Court</i> (1979) 99 Cal.App.3d 543, 550 [financial information].) Disclosure may be ordered when the information is directly relevant and essential to the fair resolution of the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1014; see <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [framework for determination of privacy objection]; <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35 (<i>Hill</i>) [same]; see also <i>Puerto v. Superior Court</i> (2008) 158 Cal.App.4th 1242, 1251 [harmonizing privacy analysis in pre and post-<i>Hill</i> decisions].) The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (<i>Davis, supra</i>, 7 Cal.App.4th at p. 1017.)